

RAIL

Passenger Rail Is Headed for a Reckoning — and the First 90 Days of 2026 Will Decide It

Railfans: it's time to go full steam ahead.



By **Jim Mathews**



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Photo: Levi Meir Clancy

If December is a time for taking stock and taking a break, then January is often a time for realism and resolve. And this January is turning out to have even sharper edges than usual.

That's because decisions being made in the first ninety days of 2026 in three different areas really could change everything we know about passenger rail in America.

A mega-merger with massive implications for passenger rail

Let's start with the biggest issue on the horizon: the proposed merger of Union Pacific and Norfolk Southern. Yes, the ultimate decision is about a year away. But sides are lining up for and against, and right now, the Surface Transportation Board, which is colloquially known as STB — the railroads' economic regulator — is considering the details of how the rules governing that decision will be applied. From outside the formal proceeding, meanwhile, vested interests are already trying to find ways to put their thumbs on the scale in advance.

Mergers come and go. But this one is really, truly different. Together, UP and NS currently host 25 of Amtrak's 44 state-supported and long-distance routes — fifty-seven percent of the entire national network. Those lines carried more than 11 million passengers in 2024. That's almost two-thirds of all Amtrak riders outside the Northeast Corridor.

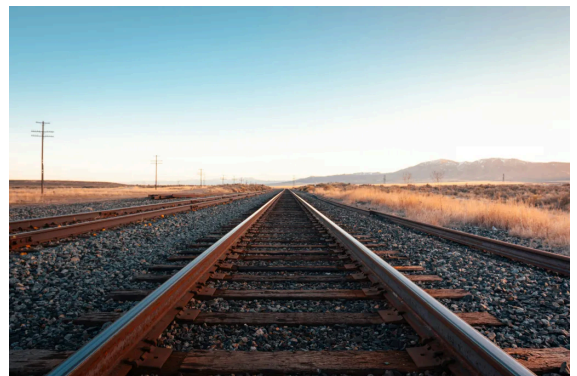
The harsh truth is that if you care about Amtrak trains running on time, going where you want to go, and adding the service that you need, a combined UP-NS will effectively have veto power over all of that. We will be living in the world that UP-NS creates — and doing so on their terms.

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And it's not just today's trains that hang in the balance. Of the 69 corridors selected by the Federal Railroad Administration for development, 33 would operate partly or entirely on UP or NS tracks. That's nearly half of the future passenger rail network in this country potentially controlled by a single company.

Union Pacific's initial application filing with the STB isn't encouraging. When it comes to passenger trains, there's an almost boilerplate, cut-and-paste repetition of the phrase "maintaining current passenger service levels." Even the most optimistic reading suggests, at best, that would mean maintaining today's substandard status quo for passenger-rail service. A more pragmatic reading looks even worse.

Congress explicitly rejected the passenger-rail status quo in 2021 when it wrote the Infrastructure Investment and Jobs Act, kicking off expansion plans with serious, multi-year funding. And Congress may hold the answer here again: in October, Senators John Hoeven (R-N.D.) and Amy Klobuchar (D-Minn.) led a bipartisan [letter](#) to the STB along with 16 of their colleagues signaling that they want to see much more than just a rubber stamp applied to this merger.

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As I often counsel transit and rail advocates, the message to your elected representatives is pretty simple: "I live here, I vote here, and this is important to me." No matter where you live, you can ask your Senator to look skeptically and critically at this transaction, but that carries a bit more weight if you're represented by one of the Senators who signed this letter.

That includes Republicans like Tim Sheehy of Montana, Bill Cassidy of Louisiana, long-distance trains stalwart Steve Daines of Montana, Roger Marshall of Kansas, South Dakota's Mike Rounds, Mississippi's Roger Wicker (another Amtrak stalwart), Jim Banks from Indiana, and Iowa's Joni Ernst. Apart from Klobuchar, the Democrats include New Mexico's Martin Heinrich, Tina Smith from Minnesota, Raphael Warnock from Georgia, Senate Commerce Ranking Member Patty Murray of Washington, Arizona's Ruben Gallego, Tammy Baldwin from Wisconsin, Illinois' Tammy Duckworth, and Senate Minority Whip Dick Durbin, also from Illinois.

Richard Kloster, a long-time railroad consultant, is the White House's pick for the empty spot on the STB and he faced a confirmation hearing last month in the Senate. He has not yet been confirmed, and under Senate rules any Senator can put a hold on a nomination.

A bruising budget battle on the horizon

Congress faces an even more immediate issue right now, however: the possibility of yet another government shutdown at the end of this month.

Both Republicans and Democrats emerged bruised and bloody from last fall's record shutdown — and when I talk with folks here in DC, there isn't much appetite to go through that again. On the other hand, there's not a lot of agreement on how to move forward on appropriations for various functions, even in a temporary way through something called a "continuing resolution" (which effectively keeps the lights on at present levels until a regular funding bill gets passed.)

A shutdown would once again freeze federal grant programs, delay crucial environmental and permitting reviews, stall construction seasons, and disrupt the very agencies responsible for passenger rail safety and development. Corridor Identification program work, Fed-State Partnership grants — all of it could grind to a halt. Even a couple of weeks' delay could ripple through and lose passenger-rail another year of important progress.

And as we all know, infrastructure we build today is always cheaper than what we build tomorrow. Delays intrinsically cost money.

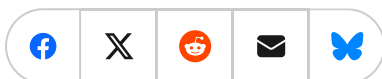
Reauthorization, reauthorization, reauthorization

The third area for advocates to watch, of course, is the work to replace the 2021 Infrastructure Investment and Jobs Act.

House Transportation and Infrastructure Chair Sam Graves (R-Mo.) has already said he wants to get a new five-year authorization done by May. But he's also said he wants it to be a "traditional highway bill," which would unwind more than a decade's worth of progress in investing in rail and transit at the Federal level.

Yes, it's true: this is a Congress which enjoys a productivity record unblemished by success, and the likelihood of an actual surface bill making it through both the House and Senate and to President Trump's desk before election season kicks off is pretty low. But it's not zero. And if we want to keep the momentum going for rail and transit progress in this country, once again you'll have to call your member of Congress and let them know you want more than just a "Pave, Baby, Pave" five-year policy bill.

Of course, a whole new Congress could emerge after November's elections. As an advocate, your message to your candidates should make it clear what you care about and what shapes your vote. That might not be a bad way to get the IIJA replacement bill we all want, need, and deserve.



Jim Mathews

Jim Mathews leads the DC-based professional staff of the Rail Passengers Association as President & CEO, where he is responsible for strategy, policy, and business operations. He appears frequently in national media, and also testifies before Congress and regulatory bodies. Mathews serves on eight Federal advisory panels across DOT, the Federal Railroad Administration, and the Surface Transportation Board, representing the Association's 127,000 members, donors, and supporters, plus the 40 million Americans

who rely every year on trains and public transportation. As a member of the DOT's National Advisory Committee on Travel & Tourism Infrastructure, he was principal drafter of the NACTTI final report to Congress and DOT in 2020.

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